

2018 SCC OnLine All 2014

In the High Court of Allahabad

(BEFORE MAHESH CHANDRA TRIPATHI AND NEERAJ TIWARI, JJ.)

Udayveer Singh Petitioner;

v.

State of U.P. And 3 Others Respondents.

Writ - C No. - 21501 of 2018

Decided on June 18, 2018

Counsel for Petitioner:- Santosh Kumar Yadav

Counsel for Respondent:- C.S.C., Kapil Dev Singh Rathore

ORDER

1. Heard Sri. Santosh Kumar Yadav, learned counsel for the petitioner, Sri. Shyam Singh Yadav holding brief of Sri. Kapil Dev Singh Rathore, learned counsel for the Respondent, 4 and Smt. Subhash Rathi, learned Additional Chief Standing Counsel for the State-Respondent.

2. The petitioner is assailing the impugned recovery citation dated 7.5.2018 passed by third Respondent and further prayed to command the fourth Respondent to receive the due amount in easy instalments after adjusting the deposited amount as well as after deducting collection charges.

3. The record in question reflects that the petitioner operates a floor-mill having electricity connection bearing No. BS3101110349 with sanctioned load of 8.5 HP. It is also stated that he has deposited the entire due amount finally in the month of November, 2013. The petitioner is assailing the validity of the impugned recovery citation on various grounds.

4. Learned counsel for the petitioner on the basis of averments contained in the writ petition states that the petitioner is willing to clear the outstanding amount and has placed reliance to the provisions contained in 6.15 of U.P. Electricity Supply Code, 2005 wherein if the incumbent is in distress, the licensee shall extend the facility of easy instalment to those consumers who are in financial distress and, as such, request has been made for fixing the easy instalment in the matter.

5. Learned counsel for the petitioner states that the petitioner had deposited Rs. 70,000/- on 27.12.2017, Rs. 2 lac on 30.1.2018 and also deposited Rs. 30,000 but the petitioner at present does not have the receipt and, as such, it is sought to be contended that the impugned

recovery is being made in arbitrary manner without actually adjustment of the deposited amount.

6. Learned counsel who appears for the electricity department states that the impugned recovery is fully sustainable under the present facts and circumstances whereas the petitioner since November, 2013 has not deposited the outstanding amount towards the aforesaid electricity charges and, as such, the same is sustainable in the eyes of law and no interference is required.

7. In the facts and circumstances of the case without adverting on the merits of the issue the writ petition stands disposed of asking the petitioner to deposit Rs. 50,000/- within three weeks from today and in case any such deposit is made, then the Sub Divisional Officer would proceed strictly in accordance with law on the basis of 6.14 of U.P. Electricity Supply Code, 2005 and fix easy instalment.

8. With the aforesaid observation, the writ petition stands disposed of.

9. It is made clear that the Court has not adjudicated the matter on merit.

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